# 23NWCV01846 23NWCV01846

County: los-angeles

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THALKEN, ET AL. v. FORD MOTOR COMPANY

CASE NO.: 23NWCV01846

HEARING: Tuesday, August 18, 2026, at 9:30 AM

Plaintiffs’ Motion for Attorney’s Fees is GRANTED in the amount of $20,576.00 in attorney’s fees and costs of $8,879.42.

This amount is to be paid by no later than 90 days from the date of the Court’s issuance of this Order. This date may be extended by agreement of the parties.

Moving Party to give notice.

Background

The relevant procedural history of this case is as follows: On June 15, 2023, Plaintiffs MICHAEL THALKEN and BRANDI THALKEN (“Plaintiffs”) filed this lemon law action against Defendants FORD MOTOR COMPANY. (“Defendant”); SANTA MARGARITA FORD INC. dba SANTA MARGARITA FORD; and DOES 1 through 10, inclusive. On May 14, 2025, Plaintiffs accepted Defendant’s 998 settlement offer.

Plaintiff now moves for attorney’s fees in the amount of $22,645.50

with a 1.3 times multiplier. Plaintiff also seeks to recoup $8,879.42 in costs.

Prevailing Party

Cal. Civ. Code §1794(d) states, "[i]f the buyer prevails in an action under [the Song Beverly Act], the buyer shall be allowed by the court to recover as part of the judgment a sum equal to the aggregate amount of costs and expenses, including attorney's fees based on actual time expended, determined by the court to have been reasonably incurred by the buyer in connection with the commencement and prosecution of such action."

It is undisputed that Plaintiffs are the prevailing party and is entitled to reasonable attorney's fees. The only issue pending before this Court is the amount of the award.

Attorney's Fees

The matter of reasonableness of a party's attorney's fees is within the sound discretion of the trial court. (Bruckman v. Parliament Escrow Co. (1989) 190 Cal.App.3d 1051, 1062.) When assessing the amount of any attorney's fee award, courts typically determine what is reasonable through the application of the "lodestar" method. Under the lodestar method, a base amount is calculated from a compilation of (1) time reasonably spent and (2) the reasonable hourly compensation of each attorney. (Serrano v. Priest ("Serrano III") (1977) 20 Cal.3d 25, 48); (See also Meister v. Regents of University of California (1998) 67 Cal.App.4th 437, 448-449 holding that the lodestar method applies to statutory attorney fees award unless the underlying statute provides for another method of calculation). Normally, a "reasonable" hourly rate is the prevailing rate charged by attorneys of similar skill and experience in the relevant community. (PLCM Group, Inc. v. Drexler (2000) 22 Cal.4th 1084, 1095.) That amount may then be adjusted through the consideration of various factors, including "(1) the novelty and difficulty of the questions involved, (2) the skill displayed in presenting them, (3) the extent to which the nature of the litigation precluded other employment by the attorneys, and (4) the contingent nature of the fee award." (Ketchum v. Moses (2001) 24 Cal.4th 1122, 1132.) The Court is vested with discretion to determine which claimed hours were reasonably spent, and what an attorney's reasonable hourly rate is. (Dover Mobile Estates v. Fiber Form Products, Inc. (1990) 220 Cal.App.3d 1494, 1501); (See also Flannery v. California Highway

Patrol (1987) 61 Cal.App.4th 629, 644.) [“We readily acknowledge the discretion of the trial judge to determine the value of professional services rendered in his or her court.”].

Plaintiffs’ Knight Law Group, LLP, bills at a rate
from $145/hr. (paralegal rate) to $575/hr. (See Kirnos Decl., Ex. A at p.10.) A “reasonable” hourly rate is the prevailing rate charged by attorneys of similar skill and experience in the relevant community. (PLCM Group, Inc. v. Drexier (2000) 22 Cal.4th 1064, 1095.) Based on the declarations submitted by Counsel, the Court finds that Plaintiff Counsels’ hourly rates are reasonable.

The Court’s next determines whether the number of hours
billed is reasonable. (Dover Mobile Estates v. Fiber Form Products, Inc. (1990) 220 Cal.App.3d 1494, 1501.)

Plaintiff
seeks $22,645.50 in attorney’s fees. Defendant counters and ask the Court to award no more than $8,390.63. Upon review of Plaintiff’s billing records, the Court finds that neither position is correct.

The Court has carefully reviewed the declarations submitted
by counsel. The Court agrees with opposing counsel that a few of Plaintiffs’ time entries are excessive. For instance, the Court finds Plaintiffs’ 3.2 hours billed to “Draft MTC RFP and supporting docs” excessive. The Court disagrees with Defendant that excessive entries should be stricken entirely. Rather, the Court reduces the Plaintiff’s total hours claimed.

Moreover, based on the
non-complexity of this case and the routine nature of lemon law litigation, the Court does not find a multiplier reasonable or necessary.

Apportionment

The Song-Beverly Act
claim comes with a fee-shifting statute under which the present motion has been brought, (CCP § 1794(b),) but common-law fraud claims have no such allowance, (See¿Aozora Bank, Ltd. v.¿1333 North California Boulevard¿(2004)¿119 Cal.App.4th 1291, 1294, citing¿Gray¿v. Don Miller & Associates, Inc.¿(1984)¿35 Cal.3d 498, 506.)¿¿¿

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However,
fees¿not need¿to be apportioned when¿claims arise¿the same operative facts and are too intertwined to have apportionment be practical. (Santana v. FCA US, LLC¿(2020) 56 Cal.App.5th 334, 347.)¿¿

¿

Santana¿inquires¿into (1) if the two cases really stem from the same operative facts and (2) if¿so, if¿there is a practical way to apportion the fees between the causes of action. (Id.¿at 347-349.)¿

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Defendant argues "the
2.1 hours for $840.00 related only to Plaintiffs' negligent repair and fraud causes of action should be excluded entirely, as they do not pertain to Plaintiffs' Song-Beverly claims at all." (Opp. at p. 12:13-14.) The Court does find that Plaintiffs' fraud and negligent repair claims arise from
the same operative facts as Plaintiffs' Song-Beverly Act claim. However, Defendant's Opposition helpfully provides that Plaintiffs billed 2.1
related to fraud and negligent repair.[1]

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The Court thus
reduces Plaintiffs'¿attorney fee reward by $840.

Costs

"A verified memorandum
of costs is prima facie evidence of the propriety of the items listed on it,
and the burden is on the party challenging these costs to demonstrate that they were not reasonable or necessary."¿Adams v. Ford Motor Co.¿(2011) 199 Cal.App.4th 1475, 1486 (citations and quotations omitted).¿

"Documentation must be
submitted only when a party dissatisfied with the costs claimed in the memorandum challenges them by filing a motion to tax costs."¿Bach v. County

of Butte¿(1989) 215 Cal.App.3d 294, 308.¿However, “mere statements in a motion to strike and attorney declaration are insufficient to rebut the prima facie showing.”¿Rojas v. HSBC Card Services Inc.¿(2023) 93 Cal.App.5th 860, 896.¿

Defendant is misguided that Plaintiffs needed to provide invoices or evidence to support the memorandum of costs. Indeed, Plaintiffs’ memorandum of costs is prima facie evidence of the costs claimed. Defendant fails to challenge specific items in Plaintiffs’ memorandum of costs.

Plaintiffs’ costs are awarded in full.

Conclusion

Plaintiff’s Motion for Attorney’s Fees is GRANTED in the amount of $20,576.00 in attorney’s fees and costs of $8,879.42.

[1]
This includes reviewing, opposing, and attending the hearing on Defendant’s Demurrer which related to fraud and negligent causes of action only. Further includes Plaintiffs drafting a First Amended Complaint which alters allegations related to negligent repair.